Shay Dvoretzky argued the cause for respondent. With him on the brief were *Parker Rider-Longmaid*, *Hanaa Khan*, *Raza Rasheed*, and *Mike Pan Gao*.*

JUSTICE THOMAS delivered the opinion of the Court.

Respondent Muk Choi Lau, a Chinese citizen, became a lawful permanent resident in 2007. New Jersey charged him with a crime in 2012. He then temporarily left the United States. Ordinarily, a lawful permanent resident who arrives in the United States after a temporary absence does not have to apply for admission because he is regarded as already admitted. 8 U. S. C. § 1101(a)(13)(C). If he has committed certain crimes, however, the Government may regard him as not yet admitted. § 1101(a)(13)(C)(v). Because of Lau's pending charge for a crime, a border officer declined to regard Lau as admitted upon his return and did not admit him at the border. Instead, the officer paroled him pending the resolution of his criminal case, meaning that he was allowed to physically enter the country without being formally admitted. After Lau pleaded guilty to the New Jersey charge, the Government initiated removal proceedings and secured a removal order based on his conviction. The Board of Immigration Appeals affirmed.

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The United States Court of Appeals for the Second Circuit vacated the removal order. It concluded that Lau should have been regarded as already admitted upon arrival unless the border officer had "clear and convincing" evidence that Lau had committed the crime, which it held that the officer lacked. *Muk Choi Lau* v. *Bondi*, 130 F. 4th 42, 46 (2025). Because the Immigration and Nationality Act (INA) does not

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**Christopher J. Hajec* filed a brief for the Federation for American Immigration Reform as *amicus curiae* urging reversal.

Briefs of *amici curiae* urging affirmance were filed for the American Immigration Lawyers Association et al. by *Lauren M. Blas*; for the Asian American Legal Defense and Education Fund et al. by *Alan E. Schoenfeld*; and for Immigration Law Professors by *Carolyn F. Corwin.*

impose that requirement, we vacate the Second Circuit's judgment.

I

A

The Government can remove aliens on different grounds depending on whether they have been formally admitted to the country. It can remove aliens applying for admission if they are "'inadmissible,'" and it can remove already admitted aliens if they are "'deportable.'" *Campos-Chaves* v. *Garland*, 602 U. S. 447, 451 (2024). The INA specifies the respective grounds of inadmissibility and deportability with which the Government can charge an alien. §§ 1182(a), 1227(a). As relevant here, the Government can charge an alien applicant for admission as inadmissible if he has been "convicted of . . . a crime involving moral turpitude" at any time. § 1182(a)(2)(A)(i)(I). By contrast, the Government can charge an already admitted alien as deportable if he has been "convicted of a crime involving moral turpitude" only if that crime was "committed within five years . . . after the date of admission." § 1227(a)(2)(A)(i).

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Because lawful permanent residents generally must be regarded as already admitted to the country, they usually do not have to reapply for admission when they return from temporary overseas travel. § 1101(a)(13)(C). But, under an exception central to this case, the Government may regard a lawful permanent resident as "seeking an admission" (and thus as not already admitted) if he "has committed an offense identified in section 1182(a)(2)," § 1101(a)(13)(C)(v), including a crime involving moral turpitude, § 1182(a)(2)(A)(i)(I).

When the Government institutes removal proceedings against an alien, the INA imposes various burdens of proof on the alien and the Government. See §§ 1229a(c)(2), (3). But, it does not specify whether the Government has the burden to establish that the alien is an applicant for admission in the first place, as opposed to someone already admitted.

B

Lau is a Chinese citizen. He was admitted to the United States as a lawful permanent resident in 2007, making him a "noncitizen who is authorized to live permanently in the United States." *Barton* v. *Barr*, 590 U. S. 222, 227 (2020). On May 7, 2012, New Jersey charged Lau with trademark counterfeiting. While awaiting trial, Lau temporarily left the United States for China. On June 15, 2012, Lau attempted to reenter the United States by presenting himself to a border officer at John F. Kennedy International Airport. Because of his pending criminal charge, the officer did not regard Lau as already admitted, but instead as an applicant seeking admission.

The border officer did not immediately decide whether Lau was ultimately admissible. The INA allows the Government to parole certain aliens seeking admission instead of formally admitting them, detaining them, or removing them. § 1182(d)(5)(A). Parole allows an alien to physically enter the United States without being admitted. *Ibid.*; see also § 1101(a)(13)(B). Parole thus allows the Government to pause the inspection at the border and defer it to a later time without having to detain the alien pending a final admissibility decision, as would otherwise be required. §§ 1225(a), (b)(2)(A); *Jennings* v. *Rodriguez*, 583 U. S. 281, 300 (2018). The Government exercised that authority to parole Lau pending the resolution of his criminal case, instead of formally deeming him admitted.

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C

After Lau pleaded guilty to his trademark-counterfeiting charge on June 24, 2013, the Government initiated removal proceedings against him on March 13, 2014. At those proceedings, the Government charged Lau as an applicant for admission who was inadmissible for having been convicted of a crime involving moral turpitude. See § 1182(a)(2)(A)(i)(I). Lau sought to terminate the proceedings on the ground that

the Government improperly classified him as an applicant "seeking admission" when he returned from his trip abroad, instead of deeming him already admitted as a lawful permanent resident and subject to removal only on deportability grounds. 130 F. 4th, at 44 (internal quotation marks omitted). Lau also argued that his conviction was not of a crime involving moral turpitude, but that issue is not before the Court because the Second Circuit did not reach it. *Id.*, at 44, 46. Thus, for purposes of this opinion, we assume without deciding that Lau's conviction was of a crime involving moral turpitude.

The Immigration Judge found Lau removable as charged, and the Board of Immigration Appeals affirmed the removal order. It held that the Government had proved by clear and convincing evidence that Lau fell within the exception for lawful permanent residents who had committed a crime involving moral turpitude and that he was inadmissible and removable based on his conviction.

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D

Lau sought review in the Second Circuit, which vacated the removal order. The court acknowledged that a lawful permanent resident may be regarded as seeking admission after he has committed a crime involving moral turpitude, even if he has not yet been convicted. But, according to the Second Circuit, it is not enough that the lawful permanent resident committed a crime involving moral turpitude; the Government needed "clear and convincing evidence," at the border, that he committed the crime. *Id.*, at 47. Without that evidence, the court said, border officers must regard lawful permanent residents as already admitted, which precludes removal on inadmissibility grounds. Because, in its view, the criminal charge alone did not give the border officer clear and convincing evidence that Lau committed the crime, the court concluded that Lau was not properly paroled, that he should instead have been deemed admitted,

and that he therefore could not be charged with inadmissibility. The court remanded to the agency with instructions to terminate removal proceedings based on inadmissibility without prejudice to the Government's ability to charge Lau with deportability.

Because the Second Circuit's decision conflicted with those of the Fifth and Ninth Circuits, see *Luz Munoz* v. *Holder*, 755 F. 3d 366, 370 (CA5 2014); *Vazquez Romero* v. *Garland*, 999 F. 3d 656, 664 (CA9 2021), we granted certiorari, 607 U. S. 1120 (2026).

II

The Government correctly regarded Lau as an applicant for admission, so it properly charged him with inadmissibility. Nothing in the INA required the border officer to have clear and convincing evidence that Lau had committed a crime involving moral turpitude before deeming him an applicant for admission.

A

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A lawful permanent resident who has "committed an offense identified in section 1182(a)(2)" may "be regarded as seeking an admission." § 1101(a)(13)(C)(v). Section 1182(a)(2), in turn, identifies any "crime involving moral turpitude." § 1182(a)(2)(A)(i)(I). Putting the provisions together, if a lawful permanent resident has committed a crime involving moral turpitude, he may be regarded as seeking admission. And, because he is seeking admission, he "may be charged with any applicable ground of inadmissibility under section 1182(a)," § 1229a(a)(2), including being convicted of or admitting to "a crime involving moral turpitude," § 1182(a)(2)(A)(i)(I).

Removing a lawful permanent resident on a charge of inadmissibility thus involves two steps: "[W]hile only commission [of the crime] is required at step one" (to show that the alien could be regarded as seeking to be admitted), "conviction (or admission) is required at step two" (to show that the

alien seeking to be admitted is inadmissible). *Barton*, 590 U. S., at 233 (internal quotation marks omitted).

Under these rules, Lau was correctly charged with inadmissibility. At step one, the Government properly regarded him as an alien seeking admission because he had committed a crime involving moral turpitude before attempting to reenter the country. See *Luz Munoz*, 755 F. 3d, at 370. So, at step two, he was inadmissible and therefore removable if he satisfied any statutory ground for inadmissibility, including that he had been convicted of a crime involving moral turpitude. See § 1229a(e)(2)(A).

B

The Second Circuit resisted that straightforward analysis. In its view, at step one, the Government had the burden "to prove by clear and convincing evidence that [Lau] actually committed the crime in question *at the time of reentry*." 130 F. 4th, at 47 (emphasis added). We disagree.

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Nothing in the INA imposes the burden that the Second Circuit recognized. The statute imposes similar burdens in other situations, but not in this one. It imposes the burden on the applicant for admission to prove that he is admissible. § 1229a(c)(2)(A). It imposes the burden on an alien seeking to prove that he was previously admitted. § 1229a(c)(2)(B). It imposes the burden on the Government to prove that an already-admitted alien is deportable. § 1229a(c)(3)(A). But, it nowhere says that the Government has the burden to establish by clear and convincing evidence that the alien is an applicant for admission.[1]

[1] The dissent does not dispute that the INA nowhere imposes the Second Circuit's clear-and-convincing-evidence border requirement. *Post*, at 22–23 (opinion of JACKSON, J.). It asserts that there is a "requisite certainty" that the Government must have at the border, but even after looking to "the text of the statute" it fails to tell us where the dissent's requirement is to be found. *Post*, at 14.

The Second Circuit derived its clear-and-convincing-evidence requirement not from the statutory text, but from inapposite Board of Immigration Appeals precedent. The Board says that the Government must establish that a lawful permanent resident is an applicant for admission by clear and convincing evidence. App. to Pet. for Cert. 23a. But, the Board imposes this burden on the Government, correctly or not, only "*at the time of the removal hearing*," not at the border. *Matter of Valenzuela-Felix*, 26 I. & N. Dec. 53, 57, 64 (BIA 2012).[2] And, here, the Government satisfied its burden at the hearing based "on the evidence produced at the hearing," § 1229a(c)(1)(A): Lau's guilty plea was clear and convincing evidence that, before he attempted to reenter the country, he had committed the crime in question. We decline to read into the INA an additional clear-and-convincing-evidence burden on border officers entrusted with making "quick judgments on the spot" when that burden is nowhere in the statute or even Board precedent. *Luz Munoz*, 755 F. 3d, at 371.

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C

We also disagree with Lau's remaining arguments.

Lau argues that border officers had to determine that he was "seeking an admission" based on some standard, § 1101(a)(13)(C); accord, 130 F. 4th, at 49; *post*, at 14, 15–16 (JACKSON, J., dissenting), and that the same clear-and-convincing-evidence standard that the Board applies at the removal proceeding should apply for both purposes. Brief

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[2] The Board's holding that the Government bears the burden to establish that the alien is an applicant for admission is not before the Court, so we do not decide whether it is correct. See Brief for Petitioner 16. The Government suggests that, if there were any burden at the border, it would be for "the arriving individual to establish facts 'to the satisfaction of the inspecting officer'" "relevant to determining the person's status." Reply Brief 11–12; see also Tr. of Oral Arg. 19. Because we reject the Second Circuit's conclusion that border officers had to have clear and convincing evidence of Lau's crime, we need not decide that issue.

for Respondent 14–15, 31. But, as the Government points out, border "officers *did* determine that he was seeking an admission" when they paroled him. Reply Brief 2. And, as we have already explained, there is nothing in the INA that suggests that those officers had to have clear and convincing evidence to do so at that time. Lau argues that the Government "expressly" conceded that it had that burden. Brief for Respondent 15, 18. But, the Government conceded that it had the burden only "in *removal proceedings*," not at the border. Brief for Petitioner 16 (emphasis added); Reply Brief 3.

Lau also suggests that the Second Circuit did not go far enough: A lawful permanent resident may be regarded as seeking admission, he argues, only after being *convicted* of a crime involving moral turpitude. Brief for Respondent 31, 45–46; see also Brief for Immigration Law Professors as *Amici Curiae* 9; but see 130 F. 4th, at 47 (rejecting this argument). He cites this Court's footnoted dictum that the phrase "committed an offense identified in section 1182(a)(2)," § 1101(a)(13)(C)(v), "appears to advert to a lawful permanent resident who has been convicted of an offense under § 1182(a)(2) (or admits to one)," *Vartelas* v. *Holder*, 566 U. S. 257, 275, n. 11 (2012). Brief for Respondent 31, 45.

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A straightforward reading of the text contradicts Lau's interpretation. Accord, *post*, at 23–24 (JACKSON, J., dissenting). Section 1101(a)(13)(C)(v) says that a lawful permanent resident may "be regarded as seeking an admission" if he "has committed" a crime identified in § 1182(a)(2). Section 1182(a)(2), in turn, identifies certain types of crimes. One is "a crime involving moral turpitude." § 1182(a)(2)(A)(i)(I). So, under § 1101(a)(13)(C)(v), the Government may regard a lawful permanent resident as seeking admission as soon as he "*committed* a" crime involving moral turpitude "even if (as in [Lau's] case) the *conviction* occurred" later. *Barton*, 590 U. S., at 232.

To be sure, an alien's ultimate inadmissibility under § 1182(a)(2) turns on whether the alien is *convicted* of an identified crime. But, § 1101(a)(13)(C)(v), by its express terms, incorporates by reference only the crimes § 1182(a)(2) identifies, not its requirement of conviction. Read together in that way, the provisions make good sense: "An alien lawfully admitted for permanent residence in the United States shall not be regarded as seeking an admission . . . unless the alien . . . has committed," § 1101(a)(13)(C)(v), "a crime involving moral turpitude," § 1182(a)(2)(A)(i)(I). Read together in the way that Lau suggests, the provisions make little sense: "An alien lawfully admitted for permanent residence in the United States shall not be regarded as seeking an admission . . . unless the alien . . . has committed," § 1101(a)(13)(C)(v), a "convict[ion]" of "a crime involving moral turpitude," § 1182(a)(2)(A)(i)(I). One does not commit a conviction.

III

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We conclude that the Government properly charged Lau with inadmissibility. Border officers did not have the burden to establish by clear and convincing evidence that Lau had committed a crime involving moral turpitude. Because Lau still argues that his crime was not one involving moral turpitude and we do not decide that issue, we vacate the judgment of the Second Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join, dissenting.

Lawful permanent residents (LPRs)—also known as green card holders—have special status in the U. S. immigration system. They are authorized to live and work permanently in the United States (as the name suggests), are eligible for